

Pankaj Tyagi v. State of U.P.

High Court of Judicature at Allahabad · Division Bench · 25 May 2022 · WRIT - C No. - 7673 of 2022 · **Writ disposed; Para 6.5 objection in four weeks; coercive action stayed**

HEADNOTE

Without any opinion on the merits, the writ was disposed of with liberty to file an objection under Para 6.5 of the U.P. Electricity Supply Code, 2005 before respondent no. 3 within four weeks. If filed in time, the objection is to be decided after hearing within four weeks, and coercive action on the impugned demand is stayed for eight weeks or until that decision, whichever is earlier.

FACTUAL SUMMARY

Pankaj Tyagi challenged an order of 31 August 2021 by respondent no. 3 warning him to deposit the electricity bill or face permanent disconnection and a notice under rule 5 of the Uttar Pradesh Government Electrical Undertakings (Dues Recovery) Rules, 1958. He also asked that bills from 1 October 2019 be issued according to law so he could pay them. Counsel for the distribution licensee stated on instructions that an objection to the demand could be filed and decided within a fixed time.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::6.5

objection to an electricity demand under Para 6.5

HOLDING

On the licensee's statement that an objection to the impugned demand would be decided in accordance with law within a time-bound period, and without expressing any opinion on the merits, the writ was disposed of with liberty to the petitioner to submit an objection under Para 6.5 of the U.P. Electricity Supply Code, 2005 before respondent no. 3 within four weeks, along with a certified copy of the order. If submitted in time, respondent no. 3 shall decide it in accordance with law within the next four weeks after affording a reasonable opportunity of hearing. For eight weeks, or until disposal of the objection, whichever is earlier, no coercive action shall be taken on the impugned demand or notice. ¶ 3-5

PRINCIPLE TAGS

clause-6.5-alternate-remedy-to-writ The Court declined to examine the demand and disposed of the writ by sending the consumer to an objection under Para 6.5 before the authority that had issued it. ¶ 4

clause-6.5-statutory-remedy-disputed-bill The dispute over the bill demanded by the order of 31 August 2021, and the request for bills from 1 October 2019, was left to a Para 6.5 objection to be decided after hearing. ¶ 4-5

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — WHETHER THE DEMAND OF 31 AUGUST 2021 IS PAYABLE, AND WHETHER BILLS FROM 1 OCTOBER 2019 MUST BE REISSUED

Expressly left open for respondent no. 3 to decide on a Para 6.5 objection, if filed within four weeks. ¶ 4